

[REPUBLIC ACT NO. 11927, July 30, 2022]

AN ACT TO ENHANCE THE PHILIPPINE DIGITAL WORKFORCE COMPETITIVENESS, ESTABLISHING FOR THE PURPOSE AN INTER-AGENCY COUNCIL FOR DEVELOPMENT AND COMPETITIVENESS OF PHILIPPINE DIGITAL WORKFORCE AND FOR OTHER PURPOSES

Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

ARTICLE I

STATE POLICIES AND BASIC PRINCIPLES

SECTION 1. *Short Title.* — This Act shall be known as the "Philippine Digital Workforce Competitiveness Act."

SECTION 2. *Declaration of State Policy.* — The State, recognizing the transformation in the world of work due to rapid acceleration of digitalization and advances in technologies such as artificial intelligence and automation across range of industries and sectors, shall enhance the skills and competitiveness of the Philippine workforce in human, and digital technology and innovations. In furtherance thereof, the State shall ensure that all Filipino workers have access to and are provided with digital skills and competencies that are at par with global standards and shall encourage digital innovations and entrepreneurship. To this end, the State shall provide the necessary infrastructure and, in collaboration with the private stakeholders, shall undertake the upskilling, re-skilling and training of the Filipino workforce on digital technology and innovations for employability and competitiveness in the Fourth Industrial Revolution.

ARTICLE II

DEFINITIONS OF TERMS

SECTION 3. *Definition of Terms.* — As used in this Act:

(a) *21st century skills* refer to skills that are required by new jobs, including but not limited to critical thinking, problem solving, good communication, collaboration, information and technology literacy, flexibility and adaptability, innovativeness, and creativity, among others;

(b) *Certification* refers to any attestation of an individual's knowledge, proficiency, or competence in a certain subject matter or skill set by a reputable third party, which can be public, private or non-profit in nature;

- (c) *Co-working or shared service facilities* refer to shared workspaces equipped with the necessary facilities and support services for the needs of the digital workforce;
- (d) *Digital workforce* refers to any natural person who engages in remunerated activity through the use of digital skills and digital technology, regardless of work or employment arrangement, whether as a regular employee of a company or as a freelancer;
- (e) *Digital labor platforms* refer to digital technology-based platforms that facilitate the production, trade, and commercial exchange of digital content, digital products, or other goods and services arising from digital transactions. This includes web-based and online platforms where work is outsourced through an open call to geographically-dispersed individuals and location-based online applications where work is allocated to individuals in a specific geographical area;
- (f) *Digital content* refers to any type of content that exists in the form of digital data that are stored, and can be created, viewed, processed, distributed, modified and stored using computers and digital technologies. The content can be either free or paid content such as webpages and websites, social media, data and databases, digital audio, such as MP3s or MP4s, and e-books, digital imagery, digital video, video games, computer programs and software;
- (g) *Digital entrepreneurship* refers to the creation of new ventures or the transformation of existing businesses by developing novel digital technologies and/or novel usage of such technologies;
- (h) *Digital inclusion* refers to the process of ensuring that all members of society, especially those from disadvantaged and marginalized groups, have access and are empowered to utilize and benefit from state-of-the-art information and communications technology (ICT);
- (i) *Digital skills* refer to a range of skills, encompassing a combination of behaviors, expertise, know-how, work habits, character traits, dispositions, and critical understanding on the use of digital devices, communication applications, and networks to access and manage information;
- (j) *Digital technology* refers to any product or service that can be used to create, view, distribute, modify, store, retrieve, transmit, and receive information electronically in a digital form, such as personal computers and devices like desktop, laptop, netbook, tablet computer, smart phones, games consoles, media players, e-book readers, as well as digital television, robots, personal assistant smart devices, and smart boards; and
- (k) *Innovation* refers to the creation of new ideas using new or existing technologies that results in the development of new or improved products, processes, or services, which are then spread or transferred across the market.

ARTICLE III

DEVELOPMENT OBJECTIVES AND STRATEGIES

SECTION 4. *Development of the Digital Workforce.* — In developing and ensuring the competitiveness of Philippine digital workforce, the State shall:

- (a) Ensure and take proactive measures to improve the digital competence of all citizens of working age and equip them with digital skills, including digital entrepreneurship and remote work using

digital skills in order to gain from the benefits of the growing number of jobs and opportunities that are enabled by digital technologies;

(b) Ensure that Filipinos are equipped with digital skills and 21st century skills;

(c) Ensure adequate protection and support for the digital workforce for the continuous improvement of their skills to effectively keep up with global standards;

(d) Provide support to the digital workforce through the provision of co-working or shared service facilities and loan facilities with concessional terms;

(e) Ensure digital inclusion by taking into account special needs of sectors such as, but not limited to, persons with disabilities (PWDs), indigenous peoples, senior citizens, individuals located in geographically-isolated and disadvantaged areas, and other sectors in designing programs, activities and projects pursuant to this Act; and

(f) Ensure that all stakeholders from the government, industry and labor sector are properly consulted and in collaboration in the crafting of policies, programs, activities and projects for the upskilling, re-skilling and training of the Filipino workforce in digital technology and innovations.

ARTICLE IV

INTER-AGENCY COUNCIL FOR DEVELOPMENT AND COMPETITIVENESS OF PHILIPPINE DIGITAL WORKFORCE

SECTION 5. *Inter-Agency Council for Development and Competitiveness of Philippine Digital Workforce.* — There is hereby established an Inter-Agency Council for Development and Competitiveness of Philippine Digital Workforce, hereinafter referred to as the "Inter-Agency Council." It shall be chaired by the National Economic and Development Authority (NEDA) and shall be composed of the following government agencies as members: the Department of Labor and Employment (DOLE), the Department of Trade and Industry (DTI), the Department of Information and Communications Technology (DICT), the Department of Science and Technology (DOST), the Department of the Interior and Local Government (DILG), the Department of Education (DepEd), the Commission on Higher Education (CHED), and the Technical Education and Skills Development Authority (TESDA).

The Inter-Agency Council shall be the primary planning, coordinating and implementing body in the promotion, development, enhancement and competitiveness of the Philippine digital workforce. It shall ensure that all Filipino youth, students and workers have access to and are provided with skills and competencies in digital contents, platforms and technology that are at par with global standards, and shall encourage digital innovations and entrepreneurship. It shall consult and collaborate with all stakeholders from the government, industry and labor sector in the development and implementation of a national roadmap on upskilling, re-skilling and training of the Filipino workforce to address the skills gaps, particularly in digital technology and digital entrepreneurship.

SECTION 6. *Powers and Functions.* — The Inter-Agency Council shall have the following powers and functions:

- (a) Serve as the primary body responsible for the promotion, development, enhancement and competitiveness of Philippine digital workforce, and in providing entrepreneurs with incubation programs as well as support in terms of funding, skills development, and exposure to business networks;
- (b) With the DOLE as the lead agency, and in collaboration with the DICT, the local government units (LGUs) and other stakeholders, conduct a digital technology and digital skills mapping nationwide, identifying the available skills and competencies, skills gaps and training needs, demographics of the Philippine workforce in digital technology and sectors, and the availability and access to digital platforms and ICT infrastructure, among others;
- (c) Formulate digital technology and digital skills roadmap for evolving jobs and skills, identifying job growth in specific professional areas, including but not limited to the fastest-growing seven (7) professional areas identified by the World Economic Forum, namely: care, engineering and cloud computing, sales marketing and content, data and artificial intelligence (AI), green jobs, people and culture, and specialized project managers;
- (d) With the DICT and DOST as lead agencies, and in collaboration with various stakeholders, design and implement programs for upskilling, re-skilling and training, taking into consideration the results of digital technology and digital skills mapping and the roadmap for evolving jobs and skills;
- (e) Encourage and incentivize technological innovations for the growth of agri-fishery industries and hospital care or public health services;
- (f) With the DTI as the lead agency, promote business or economic opportunities for digitization of start-ups and micro, small and medium enterprises (MSMEs), and provide technical assistance and low interest loans;
- (g) Provide support and innovative strategies to promote digital technology, digital careers and innovations among students, youth and workers, including the provisions of incentives such as:
- (1) Full or partial scholarships or subsidies for appropriate trainings and certifications, whether local or abroad;
 - (2) Full or partial subsidy for the use of co-working or shared service facilities, equipment, and/or services provided by government or private enterprises or institutions;
 - (3) Credit assistance, at low interest rate, from government financial institutions for acquisition of equipment necessary to carry out digital work, including but not limited to computers, hardware and software programs;
 - (4) Afford priority access to DTI support and assistance, under its program for start-ups and for MSMEs, to digital entrepreneurs, tech start-ups or innovators; and
 - (5) Such other incentives that may be issued for the promotion, development and enhancement of digital technology and digital skills across industries and business sectors.
- (h) Establish a centralized web portal for all related training, skills development, certification, and scholarship programs to allow access by all workers who are qualified and willing to undergo

upskilling or to acquire new skills in digital technology;

(i) Create committees, working groups and regional inter-agency councils to carry out its mandate and functions;

(j) Establish an Inter-Agency Council Secretariat, which may be lodged with the NEDA or at any designated member agency; and

(k) Conduct consultations, assessment, planning and re-planning exercise with a view to ensuring the development and availability of highly-skilled digital workforce in the country.

ARTICLE V

ROLE OF THE LOCAL GOVERNMENT UNITS (LGUs)

SECTION 7. *Role of LGUs.* — All LGUs shall create local policies supporting and promoting the growth and development of digital technology, digital careers and innovations in their respective communities, which may include providing incentives for technological innovations for agri-fishery industries and hospital care or public health services.

SECTION 8. *Role of Public Employment Service Offices (PESOs).* — All PESOs shall:

(a) Develop and maintain a webpage where PESO-accredited employers may register and publish their vacancies;

(b) Create a digital application help desk where job seekers can ask for feedback or assistance with a job application;

(c) Encourage and facilitate local access to jobs at crowdwork, crowdsource, or work in-demand applications;

(d) Create a localized digital technology and digital skills registry and encourage listing in the locality for assistance and availment of local incentives; and

(e) Conduct virtual job fairs.

SECTION 9. *E-Readiness of LGUs.* — The DICT, Department of Budget and Management (DBM), Department of Public Works and Highways (DPWH) and other relevant government agencies shall ensure universal access to high-speed, quality, and affordable internet by prioritizing and facilitating the development of ICT infrastructure in the localities across the country. The DILG and DICT shall jointly assess the e-readiness of all municipalities, cities, provinces, and regions to ensure a thriving digital workforce ecosystem.

For this purpose, the national government shall prioritize the construction of digital infrastructure to foster digital-based economic activity under their infrastructure programs or initiatives.

ARTICLE VI

PUBLIC-PRIVATE PARTNERSHIP IN TRAINING AND SKILLS DEVELOPMENT

SECTION 10. *Public-Private Partnership in Trainings and Skills Development.* — The Inter-Agency Council is hereby authorized to enter into public-private partnerships with experts, information technology-business process outsourcing (IT-BPO) industry associations, private companies and other stakeholders in the formulation and implementation of training, skills development, and certification programs, covering areas, including but not limited to:

- (a) Web development and designing;
- (b) Online teaching and tutoring;
- (c) Animation
- (d) Content creation (writing and copywriting and others);
- (e) Digital marketing (e-commerce, sales and marketing);
- (f) Creative design, graphic designing, 3D modelling and CAD, game development, logo design and illustration, and audio and video production;
- (g) Mobile application development;
- (h) Search engine optimization;
- (i) Virtual assistance (administrative support or assistance);
- (j) Branding and public relations, social media coordinator and community management;
- (k) Web research, business intelligence and data analytics;
- (l) Transcription and data entry jobs article and blog writing;
- (m) Customer service and technical support;
- (n) Human resource management and systems;
- (o) Architecture services and other professional services through the internet;
- (p) Management of teams of remote workers, and other competencies needed by companies and individuals pursuant to the full implementation of Republic Act No. 11165, otherwise known as the "Telecommuting Act"; and
- (q) Such other skills requirements as may evolve or be identified by the partners.

ARTICLE VII

DEVELOPMENT PROGRAMS

SECTION 11. *Digital Workforce Week.* — The third week of June shall be designated as the Digital Workforce Week, to coincide with the National Information and Communications Technology (ICT) Month promulgated under Proclamation No. 1521, Series of 2008, to promote awareness on

evolving jobs and skills requirements in digital technology and innovations, government assistance, trainings and certifications, and digital career and business opportunities.

ARTICLE VIII

SUPPORT ECOSYSTEM

SECTION 12. *Digital Libraries and Learning Hubs.* — The DICT and the National Library of the Philippines shall promote the role of libraries in improving digital inclusion and transform these libraries as providers of digital access, trainings, including those for certifications, and support for the development and enhancement of digital skills and competencies of the workers and future members of the workforce.

SECTION 13. *Co-Working or Shared Service Facilities.* — The DTI, in coordination with relevant government agencies and in partnership with the private sector, shall establish co-working or shared service facilities to support the development and enhancement of digital skills and competencies of the workers and future members of the workforce.

ARTICLE IX

GENERAL PROVISIONS

SECTION 14. *Implementing Rules and Regulations.* — Within six (6) months from the effectivity of this Act, the NEDA, DOLE, DTI, DICT, DOST, DILG, DepEd, CHED, TESDA, in consultation with relevant government agencies and private sector stakeholders, shall promulgate the necessary rules and regulations for the implementation of this Act.

SECTION 15. *Reportorial Requirement.* — The Inter-Agency Council and all implementing agencies shall submit a report to Congress not later than June 30 of each year on the status of the implementation of this Act.

SECTION 16. *Appropriations.* — The amount necessary for the implementation of the provisions of this Act shall be included in the General Appropriations Act for the year following the approval of this Act.

SECTION 17. *Repealing Clause.* — All other laws, decrees, executive orders and rules and regulations contrary to or inconsistent with the provisions of this Act are hereby repealed or modified accordingly.

SECTION 18. *Separability Clause.* — If any provision of this Act is held invalid or unconstitutional, the same shall not affect the validity and effectivity of the other provisions hereof.

SECTION 19. *Effectivity.* — This Act shall take effect fifteen (15) days after its publication in the *Official Gazette* or in two (2) newspapers of general circulation.

Approved,

(SGD.) LORD ALAN JAY Q. VELASCO

*Speaker of the House of
Representatives*

(SGD.) VICENTE C. SOTTO III

President of the Senate

This Act was passed by the Senate of the Philippines as Senate Bill No. 1834 on May 30, 2022 and adopted by the House of Representatives as an amendment to House Bill No. 6926 on May 31, 2022.

(SGD.) MARK LLANDRO L. MENDOZA

*Secretary General House of
Representatives*

(SGD.) MYRA MARIE D. VILLARICA

Secretary of the Senate

Approved: Lapsed into law on JUL 30 2022 without the signature of the President, in accordance with Article VI Section 27 (1) of the Constitution.

(SGD.) RODRIGO ROA DUTERTE

President of the Philippines

